

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 40-005
Amendment to Title 17 of the Chickasaw Nation Code
(Forgery)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and regulations for criminal offenses and desires to amend those rules and regulations.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves that any charges filed prior to the effective date of this Resolution against any person pursuant to any stricken or changed provisions herein shall continue and be unaffected by this Resolution.

BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves that the sentence of any person convicted of an offense herein stricken or changed shall remain unaffected by this Resolution.

BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves that the provisions of this Resolution shall become effective on April 1, 2023.

BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves the following amendments to Title 17, Chapter 3, Article D, Section 17-304.1, of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

SECTION 17-304.1

FORGERY.

A. — ~~It shall be unlawful to alter any writing of another without his or her authority, or to make, complete, execute, authenticate, issue, or transfer any writing so that it purports to be the act of another who did not authorize that act, with the intent to defraud or injure anyone. "Writing" includes printing or any other method of recording information, money, coins, tokens, stamps, seals, credit cards, badges, trademarks, and other symbols of value, right, privilege, or identification:~~

B. — ~~Forgery shall be punishable by a fine not to exceed five thousand dollars (\$5,000), by a term of imprisonment not to exceed one (1) year, or by both such fine and imprisonment.~~

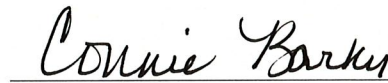
A. Every person who sells, exchanges, or delivers for any consideration any forged or counterfeited promissory note, check, bill, draft, or other evidence of debt, or engagement for the payment of money absolutely, or upon any contingency, knowing the same to be forged or counterfeited, with intent to have the same uttered or passed, or who offers any such note or other instrument for sale, exchange, or delivery for any consideration, with the like knowledge and intent, or who receives any such note or other instrument upon a sale, exchange, or delivery for any consideration with the like knowledge and intent, is punishable as follows:

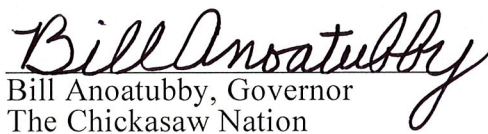
B. If the value of the instrument is less than One Thousand Dollars (\$1,000), Forgery shall be punishable by a fine not to exceed Five Thousand Dollars (\$5,000), by a term of imprisonment not to exceed one (1) year, or by both such fine and imprisonment.

C. If the value of the instrument is greater than One Thousand Dollars (\$1,000), Forgery shall be punishable by a fine not to exceed Fifteen Thousand Dollars (\$15,000), by a term of imprisonment not to exceed three (3) years, or by both such fine and imprisonment.

Executed in regular session of the Chickasaw Tribal Legislature, Meeting at Ada, Oklahoma, on February 17, 2023, by a vote of 12 ayes, 0 nays, and 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: FEB 17 2023

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Explanation:

This resolution amends Forgery to classify the charged criminal offenses as either a felony or a misdemeanor based upon the amount of the instrument forged.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature